

02:00 PM

25-CIV-04294 MONICA LOUIE, ET AL. VS. HIGHGATE HOTELS, L.P., ET AL.

LINE 6

MONICA LOUIE
HIGHGATE HOTELS, L.P.

WILLIAM J. HOOS
KEVEN STEINBERG

PLAINTIFF MONICA LOUIE'S MOTION TO QUASH OR MODIFY THE DEPOSITION SUBPOENA FOR PRODUCTION OF
BUSINESS RECORDS SERVED ON KAISER PERMANENTE CLINIC AND HOSPITAL NORTHERN CALIFORNIA

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the
tentative ruling for Line 6.

UD LAW AND MOTION CALENDAR
MONDAY, JULY 20, 2026

02:00 PM

26-UDL-00598 THE JOHN STEWART COMPANY VS. ELIANA MEDINA

LINE 7

THE JOHN STEWART COMPANY
ELIANA MEDINA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF JOHN STEWART COMPANY'S MOTION TO COMPEL DEFENDANT ELIANA MEDINA'S RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES - GENERAL, SET ONE, REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, TO DEEM ADMITTED REQUEST FOR ADMISSIONS, SET ONE AND REQUEST FOR SANCTIONS AGAINST DEFENDANT ELIANA MEDINA IN THE AMOUNT OF \$585.00

TENTATIVE RULING:

Plaintiff The John Stewart Co.'s ("TJS") Motion to Compel Defendant Eliana Medina ("Defendant")'s Responses to Discovery, Deem Admitted Requests for Admissions, and Request for Sanctions, filed July 6, 2026, is GRANTED.

This is essentially a renewed motion. On July 6, 2026, the Court denied Plaintiff's prior motion to compel without prejudice, on grounds that Plaintiff had not filed a Proof of Service demonstrating that Defendant was served with the Summons at least ten (10) days before Plaintiff served the underlying discovery requests.

On July 6, 2026, Plaintiff filed a Proof of Service, which states that on May 22, 2026, Defendant was personally served with the Summons. On June 9, 2026, Plaintiff served Defendant with the subject discovery requests (form interrogatories (Set One), requests for production of documents (Set One), and requests for admission (Set One). Thus, the discovery requests were timely served.

In an unlawful detainer proceeding, responses to interrogatories, inspection demands, and requests for admission must be served five days from service of the requests. Code Civ. Proc. § 2030.260 (b), § 2031.260 (b), § 2033.250 (b). If timely responses to interrogatories or inspection demands are not served, the responding party waives any objection to the interrogatories or demands and the propounding party may move for an order compelling responses. Id. § 2030.290 (a) & (b) and § 2031.300 (a) & (b). If timely responses to requests for admission are not served, the responding party waives any objection to the requests and the propounding party may move for an order deeming the truth of the matters specified in the requests admitted. Id. § 2033.280 (a) & (b). A court must grant this latter order unless it finds that a proposed response to the requests that substantially complies with Code of Civil Procedure section 2033.220 has been served. Id. § 2033.280 (c).

TJS presents evidence that it served its respective first sets of form interrogatories, inspection demands, and requests for admission on Defendant by express mail on June 9, 2026. July 6, 2026 Declaration of

Mercedes Gavin (“Gavin Decl.”) ¶¶ 2–5, exhs. 1–4. Defendant’s responses were therefore due no later than June 16, 2026. Code Civ. Proc. § 1013 (b) (service by express or overnight mail extends deadline by two court days). As of July 6, 2026, Defendant had not served any responses, and there is no indication any responses have been served since. Gavin Decl. ¶ 6.

Accordingly, Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS’s first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

TJS also requests the imposition of monetary sanctions against Defendant for her failure to respond to discovery. Failing to respond or to submit to an authorized method of discovery is a misuse of the discovery process supporting the imposition of monetary sanctions. Code Civ. Proc. § 2023.010 and § 2023.030 (a). TJS presents evidence showing it incurred reasonable expenses of \$585.00—in the form of \$525.00 in attorney fees and \$60.00 to bring the instant motion—as a result of Defendant’s misuse of discovery. Accordingly, Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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